

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of ANNIE HART VAUGHN License No. 081712 Respondent	CASE NO. 19-0115 SETTLEMENT AGREEMENT AND FINAL ORDER
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Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4), and 645 IAC chapter 12, the Iowa Board of Behavioral Science (“Board”) and Annie Hart Vaughn (“Respondent”) enter into the following Settlement Agreement and Final Order (“Order”) to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on July 13, 2020.
2. The Board has jurisdiction over the parties and the subject matter of this proceeding.
3. Respondent denies the charges and factual circumstances made in the Statement of Charges, but acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order. Respondent was practicing under a temporary license as part of her clinical experience pursuant to Iowa Code § 154D.2 when the alleged conduct occurred.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board’s actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing. Upon Board approval of this Order, Respondent agrees to promptly file a motion to voluntarily dismiss with prejudice the pending petition for judicial review concerning this matter in Polk County District Court.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State’s counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C. Respondent understands the existing Notice of Hearing and Statement of Charges, as issued on July 13, 2020, is a public record and will not be reissued or removed in light of any amendments made through this Order.

11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Count II is dismissed. Count I is amended to read as follows: "Respondent is charged with engaging in a professional conflict of interest, and may be disciplined pursuant to Iowa Code section 147.55(3) and 645 IAC 33.2(29)."

13. Respondent's license is hereby placed on **PROBATION** for a period of two (2) years, subject to the following conditions:

- a. Within thirty (30) days, Respondent shall submit the name and credentials of a proposed practice monitor and proposed practice monitoring plan for approval. The practice monitor must be an Iowa licensed mental health counselor with no disciplinary history and training in supervision who can objectively monitor Respondent's practice. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Respondent shall provide the practice monitor with a copy of this Order. Respondent shall meet in a face-to-face setting (video conferencing permissible for the duration of Iowa's Proclamation of Disaster Emergency) with the practice monitor at least once per month during the first year of the probationary period to review Respondent's compliance with this Order, Respondent's clinical practice, and any issues related to boundaries or ethics. During the second year of the probationary period, Respondent shall meet in a face-to-face setting with the practice monitoring at least once every two months to review Respondent's compliance with this Order, Respondent's clinical practice, and any issues related to boundaries or ethics. As part of the review of Respondent's clinical practice, Respondent's practice monitor shall review records from a minimum of ten (10) of Respondent's clients seen in the previous month (or previous two months in the second year of probation), with minor clients being prioritized for review. Respondent is responsible for ensuring the quarterly reports are timely submitted by her practice monitor.

- b. Within thirty (30) days, Respondent shall establish a relationship with a licensed health care provider for personal counseling. Respondent shall attend counseling on a monthly basis for a minimum of one (1) year. Respondent shall continue personal counseling after one (1) year as recommended by her provider.
- c. Within six (6) months, Respondent shall complete fourteen (14) hours of continuing education related to professional boundaries. Respondent shall submit certificates of completion to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal.
- d. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- e. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- f. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- g. Respondent and Respondent's practice monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- h. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.
- i. Respondent may request early release from probation after one (1) year. The Board retains the discretion to determine whether early release is appropriate, but shall consider Respondent's compliance with the probationary period when making such a decision.

14. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

1/6/21
Date

Annie Hart Vaughn
ANNIE HART VAUGHN
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Behavioral Science on March 11, 2021.

Tony Alden
Tony Alden, Board Executive
Iowa Board of Behavioral Science